



File No.: EXP202310053

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 2, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against CAIXABANK, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The complainant states that, on January 25, 2023, they requested the respondent to provide the certificate of positions, the current status of positions, and movements from the last year prior to the death of their father, as well as the data of the bank branch where the deceased held an account, without receiving a response within the legally established timeframe.

On May 31, 2023, they addressed the Data Protection Officer of the respondent reiterating their request, who responded indicating that the requested information did not correspond to matters of privacy and data protection.

SECOND: On September 11, 2023, this Agency resolves regarding the complaint filed by the complainant and their unattended access request. It concludes by archiving the complaint as follows: "...In this case, considering that the complaint was filed with this Agency on June 2, 2023, pursuant to the provisions of section 5 of Article 65 of the LOPDGDD, it is appropriate to process it in accordance with the provisions of Title VIII of the aforementioned regulation, without prejudice to the Agency's authority to subsequently and expressly archive the complaint. However, once the reasons presented by the respondent, which are part of the file, have been analyzed, it is considered that the rejection of the request made is in accordance with personal data protection regulations, and it is not necessary to urge the adoption of additional measures as the duty to respond provided for in Article 12.4 of the LOPDGDD has been fulfilled. Therefore, in view of the actions taken, the archiving of the filed complaint is appropriate. All of this is without prejudice to any possible actions regarding the data processing referred to in the complaint that this Agency may carry out, applying the investigative and corrective powers it holds. For all the above, by the Director of the Spanish Agency for Data Protection, IT IS AGREED: FIRST: TO ARCHIVE the complaint..."

THIRD: The complainant, in total disagreement with the resolution, submits a motion for reconsideration which is resolved on January 24, 2023, in a favorable manner, leading to the current complaint with the following arguments:

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"...In the present case, the respondent stated that they denied the right of access to the data related to their deceased father because the complainant's status as an heir had not been accredited. (...)

Well, from the documentation provided in the complaint, it is observed that the Act of Requirement for Declaration of Heirs of Mr. B.B.B. was provided to the respondent, signed before a Notary on July 1, 2022. (...)

Consequently, the appellant duly accredited their status as an heir and, therefore, the requested information should have been provided. Therefore, the appeal filed should be upheld..."

FOURTH: In view of the events, on January 26, 2024, the original complaint is again forwarded to the respondent, along with the motion for reconsideration submitted by the complainant and the resolution of that motion, so that within a period of fifteen working days they may present any allegations they deem appropriate.

The respondent submits allegations in which they claim to have addressed the request.

THIRD: Having examined the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of fifteen working days, they may formulate any allegations they consider appropriate.

The complainant states that one of the requested documents is missing.

Namely: "...However, the certificate of positions for account ***ACCOUNT.1 as of the date of death on 27.01.21 is missing, a document required for the tax submission..."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

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In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including the power to "order the controller or processor to comply with requests to exercise the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express

its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

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According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the controller provides remote access to the data, and the request will be deemed fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Access to Data of Deceased Persons

On this matter, it must be based on the provisions of Recital 27 of the GDPR, according to which "This Regulation does not apply to the protection of personal data of deceased persons. Member States are competent to establish rules regarding the processing of personal data of these individuals."

In this regard, Article 2.2.b) of the LOPDGDD reiterates that the following are excluded from the scope of application of the Organic Law: "(...) the processing of data of deceased persons, without prejudice to the provisions of Article 3."

The aforementioned Article 3 of the LOPDGDD, under the heading "Data of Deceased Persons," provides as follows:

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“1. Individuals related to the deceased by family ties or de facto relationships, as well as their heirs, may contact the data controller or processor to request access to the personal data of the deceased and, where applicable, its rectification or deletion.

As an exception, the individuals referred to in the previous paragraph shall not have access to the data of the deceased, nor may they request its rectification or deletion, when the deceased person expressly prohibited it or when established by law. This prohibition shall not affect the right of the heirs to access the deceased's property-related data.

2. Individuals or institutions expressly designated by the deceased for this purpose may also request, in accordance with the instructions received, access to the personal data of the deceased and, where applicable, its rectification or deletion. The requirements and conditions for validating and maintaining these mandates and instructions, and, where applicable, their registration, shall be established by royal decree.

3. In the event of the death of minors, these powers may also be exercised by their legal representatives or, within the scope of their competencies, by the Public Prosecutor's Office, which may act ex officio or at the request of any interested natural or legal person.

In the event of the death of persons with disabilities, these powers may also be exercised, in addition to those indicated in the previous paragraph, by those designated to perform support functions, if such powers are understood to be included in the support measures provided by the designated person.”

The Supreme Court, in its ruling of 04/03/2024 (R. 7418/2022), interprets this regulation considering that “Under the provisions of Recital 27 of the GDPR, the rules of the Regulation apply to the protection of personal data of living persons, but an EU Member State may enact rules regarding the processing of data of deceased persons, and such processing may be subject to the same rules that apply to living persons, including the GDPR.”

It adds in the aforementioned ruling that “Article 2.2 of the LOPDGGD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased persons, 'without prejudice to what is established in Article 3.' For its part, Article 3.1 of the LOPD empowers the heir to contact the data controller or processor and request 'access to the personal data of the deceased' and 'where applicable, its rectification or deletion.’”

By virtue of this reference to the laws of the Member States, it is perfectly possible for the rules of the GDPR to apply to the processing of data of deceased persons, as Recital 27 does not prohibit it. In other words, under the provisions of Recital 27 of the GDPR, the rules of the Regulation apply to the

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protection of personal data of living individuals, but a Member State of the EU may enact rules regarding the processing of data of deceased individuals, and such processing may be subject to the same rules that apply to living individuals, among which is the GDPR. Advancing along this line, we have seen that Article 2.2 of the LOPDGGD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased individuals, "without prejudice to what is established in Article 3."

Following this jurisprudential line, it can be concluded that the regime applicable to the right of access mentioned in Article 3.1 of the LOPDGGD is the same as that generally contained for the data of natural persons in the aforementioned law. Therefore, Article 3 of the LOPDGGD legitimizes individuals related to the deceased for family or factual reasons and their heirs to request the data controller access to the personal data of the deceased, under the terms provided in Articles 13 of the LOPDGGD and 15 of the GDPR and, consequently, with the scope and limits that may be opposed to the exercise of this right.

VI

Conclusion

In the case analyzed here, the claimant exercised their right of Access and after the period established in the aforementioned regulations, their request received a response that this Agency considered

adequate, and the complaint was filed.

Later, the claimant submitted a motion for reconsideration which, once analyzed, was upheld and led to the current complaint.

Now, having analyzed all the documentation provided by both parties, we find that the reason for the discrepancy is a statement of positions of an account of the claimant's deceased father, which the claimant states they have not received, and which the responding party provides in their allegations, as we have verified.

However, despite providing this document, there is no evidence of its sending and receipt by the claimant. Therefore, in light of the claimant's assertion of not having received it and the lack of proof of receipt, we must uphold this complaint for incomplete access rights.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge CAIXABANK, S.A. with NIF A08663619, to send the claimant a certification addressing the requested right or to deny it with justification indicating the reasons why the request cannot be met, within ten working days following the notification of this resolution, in accordance with what is established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to CAIXABANK, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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